

23CV-04368

Tony Borba, et al. vs County of Merced, et al.

Motion to Transfer

**The Department of Fish and Wildlife's motion to transfer pursuant to Code of Civil Procedure section 394 is DENIED.**

**Code of Civil Procedure section 394 specifically excludes the State of California and its agencies from the code section. (Code Civ. Proc. § 394, subd. (b).) The Court is not aware of any authority, and none is provided, that supports the assertion CDFW may move to transfer a lawsuit initiated by a local government entity to another county pursuant to Code of Civil Procedure section 394.**

**Further, in the context of damages as we have here, when an action is commenced by a local government entity, Government Code section 955.3 applies. "Notwithstanding any provision of law, when a city, county, or city and county, or local agency is a plaintiff in an action or proceeding against the State of California, the action may be tried in any city or county, or city and county, where the city, county, or city and county, or local agency is situated." (Gov. Code § 955.3.) Thus, transfer may only be ordered in accordance with Code of Civil Procedure section 397.**

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24CV-05064

Heriberto Martinez vs Angel Anaya, et al.

Motion to Be Relieved as Counsel

**The unopposed motion by attorney Kimberly G. Flores and the law firm of Berliner Cohen LLP, to be relieved as counsel for plaintiff Heriberto Martinez, AKA Eddie Martinez is GRANTED, effective upon the filing of a proof of service of the signed order on the client.**

**The Court will sign the order lodged with the court on April 15, 2026.**

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25CV-03246

People vs \$160,625.00 Currency

Status Conference

**Appearance required.**

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25CV-04604

Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Sanctions

**Appearance required. Appear to show cause why sanctions should not be issued for Plaintiff's counsel's failure to appear at the case management conference on April 20, 2026. Notice of this hearing was sent by the clerk's office on April 30, 2026. No declaration has been filed by counsel in advance of the hearing. No proof of service of the summons and complaint on the defendant has been filed.**